“On ne négocie pas avec les terroristes” : A bargaining range explanation of the October Crisis in Québec

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Term Paper

PS Einführung in die Internationalen Beziehungen: Why We Fight: The Origins of Conflict and the Paths to Peace [PS] [1. PG] (HWS 2025)Prof

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16/01/26

Word count: 3989



55 years ago, as of last year, the province of Quebec in Canada entered the biggest political crisis of its modern history (Cooling, 2023: 5). What is known as the October crisis was the peak of the conflict between the Front de Libération du Québec (FLQ), an armed group motivated by the idea of Quebec independence, and the federal Government of Canada (Burke, 2009). The tensions between the two factions were already high when the FLQ kidnapped British diplomat James Richard Cross and Quebec Minister Pierre Laporte (Cooling, 2023: 5), when one of them was found dead, the crisis broke out (Smith, 1993: 87).The War Measures Act was declared by the federal government, which led to mass arrests without due process, and the use of the Canadian Armed Forces in the street (Burke, 2009: 335). This is Canada's first experience with domestic terrorism (Smith, 1993: 86). The event's very ideological nature has led to a lot of debate on its role in the rise of independence that followed, with the referendum in the 80s and 90s. This relates to a very important paradox in the literature on terrorism. Studies find that terrorism is almost always counterproductive when it comes to getting government concessions, but non-state actors keep resorting to terrorism as a technique (Abrahms, 2012: 367). The case of the FLQ has rarely been used to test terrorism`s potential rational use, despite the group's pragmatic nature. This paper will answer the following research question: How does the rationalist bargaining range theory explain the October Crisis in Québec? The theory uses the bargaining range theory, as well as recent work on terrorism to derive three descriptive hypotheses about the usage of terrorism as a rational tool by the FLQ to ameliorate their position at the negotiation table with Canada. In the first section, I will present a literature review to show the gap in the research, I will then present the model of this paper and the derived hypotheses and finally conclude with discussion.

Literature Review

The literature on terrorism is notoriously the source of enormous debates and discussions. These debates are so heavily present that every definition of it has been contested by authors. There is, however, a few points of convergence across the literature. Terrorism is firstly a politically motivated act of violence which seeks to have an effect that goes beyond the immediate victims (Jones & Libicki, 2008: 3; Polo & Gleditsch, 2016: 816). Polo and Gleditsch used the analogy of twisting an arm: no one twists an arm to neutralize or

strategically gain power over their adversary, but rather to send a message (Polo & Gleditsch, 2016: 815-816), to create a psychological effect to achieve political gains (Feldman, 2017: 320). In other words, acts of terrorism have an audience (Fortna, 2015: 525). To illustrate this definition, a good example is the also contested concept of narcoterrorism. The killing of a rival cartel member does not constitute terrorism, since the objective is the immediate victim. A spectacularly brutal act of violence against a rival cartel member, however, can help gain control over territories, by changing the behavior of the government, the local populations and even other criminal organization, by sending a message that goes beyond the immediate victims of the act (Campbell & Hansen, 2014: 161).

One of the areas of the disagreement in the literature on terrorism concerns the authors of terrorist attacks. While some argue that terrorism can be used by a state to achieve political goals (Ganor, 2002: 288) while others suggest only non-state actors can partake in terrorist acts (Lake, 2002: 17). While I tend to agree with those defending the idea that states also sometimes use violence to send messages, I will in this paper restrict to the usage of such acts by non-state actors. Most acts of terrorism have government has the target audience (in the sense that it is the government from which perpetrators want to extract concessions) (Jones & Libicki, 2008; Abrahms, 2012: 366). Through installing a climate of fear, they want to force the government to negotiate, out of concern for their population's safety (Polo & Gleditsch, 2016: 816). There can also be a second public: the population, which might, out of fear, pressure their governments to negotiate with the terrorists out of concern for their physical safety (Fortna, 2015: 525-526).

Terrorism is generally considered to be predominantly used by groups, although there is a documented rise of "long-wolf" attacks, where the perpetrator acts alone (Jones & Libicki, 2008: 4). The ideological nature of these groups constitutes the criteria upon which some of the most popular typologies of terrorism were built (Jones & Libicki, 2008: 5). The categories go as follows: left-wing, right-wing, religious and ethnonationalist/separatist (Jones & Libicki, 2008: 15). While left-wing and right-wing groups are straightforward, the nature of religious groups using terrorism is heavily debated (Jones & Libicki, 2008: 5; Gunning & Jackson, 2011: 369). Some authors will argue that contrarily to other groups,

religious groups use a new form of terrorism which does not seek concrete political gains but work to achieve a divine duty (Gunning & Jackson, 2011: 371-372). Other authors state that the concept of religious terrorism is a reducing European construct (Gunning & Jackson, 2011: 370). For example, the Palestinian Hamas, despite being considered as a religious terrorist organization, has a fundamentally political objective (Jones & Libicki, 2008: 5). The means (violence) are justified through religious interpretations but not the objectives themselves (Gunning & Jackson, 2011: 376).

Empirical data suggest terrorism is systematically inefficient at obtaining important political concessions (Abrahms, 2006: 51). Indeed, Abrahms found that groups who primarily attack civilians have a success rate estimated at around 7% (Abrahms, 2006: 374). Furthermore, other data suggests that targeting civilians create the perception for governments that the terrorists are incorrigible and want to destroy society, which only leads to further repression rather than negotiation (Abrahms, 2006: 56). One of the issues with such studies is its focus on what is called "*outcome goals*", that is, major political concessions from a government (Abrahms, 2012: 367). While terrorism appears to be inefficient at directly obtaining these concessions, findings in the literature suggest that it would be an effective way to gain "*process goals*". Process goals refer to goals associated with the group's survival. This includes mediatic attention, financial support, recruitment or group moral (Abrahms, 2012: 367). For these objectives, terrorism shows to be much more efficient (Thomas, 2013: 805). Indeed, in the context of civil wars for example, terrorism is an efficient of putting an issue on the political agenda nationally but even internationally (Fortna, 2015:528).

To explain terrorism rationally, Lake (2002) used Fearon's (1995) bargaining range theory. The theory conceptualizes war as a failure of negotiation (Fearon, 1995). Lake's contribution conceives the terrorism act of violence as a strategy to shift the bargaining range (2002). Indeed, while previous models conceived the violence has the failure of communication, this importation of the bargaining range theory into the field has made it possible to conceptualize terrorism as a tool of communication (Lake, 2002; Abrahms, 2006; Polo & Gleditsch, 2016).

For example, Polo & Gleditsch (2016), explain that terrorism is used by some groups as a communication tool to both the population and the government, to be more credible in the negotiation process.

There is also another theory in which terrorism seems to be a rational tool related to the bargaining range. Indeed, research shows that terrorist group will sometimes use terrorism to bait the government into a disproportionate repressive response (Mahoney, 2018: 922; Freedman, 2017). The disproportionate response can have the effect of involuntarily punishing the broad population for the terrorist group's action, which can radicalize moderates and create negative feelings towards the state, which can lead to more support for the terrorist group, and therefore a better chance at bargaining (Lake, 2002).

In the same type of tactics, Thomas (2014) uses the older concept of *power to hurt*, that is, a group's ability to hurt another group in a way that they cannot reciprocate (Thomas, 2014: 804). Thomas argue that terrorism increases a group's power to hurt by damaging the government's legitimacy by showing the population that it fails at protecting them. This has been proven to push governments into offering concessions (Thomas, 2014: 807). Finally, the main advantage of terrorism for non-state actors is its very low-cost. Terrorism rightfully bears the name of "weapon of the weak" (Fortna, 2015:527). In rationalist theories of conflict, signaling strength is very important, and an act of terrorism provides the ability to do that to non-state actors who would not have the same capabilities in conventional warfare (Fortna, 2015:527). This is very important in the negotiation process, as the State might not take the terrorist group seriously if they don't perceive it as potentially threatening. This creates an incentive to bargain.

The biggest gap in the literature is the application of the bargaining theory to cases like the FLQ. As in the rest of terrorism studies, the studies importing the bargaining range theory have overfocused on sectarian terrorism, with cases like Al-Qaeda (Lake, 2002), Boko Haram (Thomas, 2014) and ISIS (Polo & González, 2020). While other ethnonationalist and separatist groups have been studied in the context of bargaining range theory, such as the Irish Republican Army and the Basque Euskadi Ta Askatasuna (Mahoney, 2018; Ó Dochartaigh, 2015), those are examples of very long-lasting conflicts, in a very fragmented

situation. The FLQ, on the other hand, represents an entity that was alone, and that lasted very few years compared to the ETA and the IRA.

Theory

Our model's starting point is Fearon's (1995) bargaining range theory. The starting point of the theory is war's inherent inefficiency: the fact that prior to any armed conflict, both sides are aware of the costs that war will bring, which in theory, should be an incentive to avoid the armed conflict, as it means that there is always a better option in terms of negotiation for both sides (Fearon, 1995: 383). In all logic, this would make armed conflicts very rare. However, this is not the case. Fearon's theory explains that this compromise exists between both parties' reservation level, that is, the smallest number of benefits that the party is willing to accept in negotiations, this space is called the bargaining range (Fearon, 1995: 389). Despite there always being a bargaining range, war still happens. Fearon's theory explains that war is therefore always a failure of negotiation (Fearon, 1995: 381). In other words, a country that goes in conflict with another country will always have better options than war. What causes a war to break out are factors that make the negotiation appear as disadvantageous, impossible or as exceeding the costs of war (Fearon, 1995: 381). The main factor which explains failure of negotiation has to do with bluffing. Indeed, leaders hold crucial information about themselves, such as military power, or the population's ability and willingness to support a conflict (Fearon, 1995: 392). This information is, however, generally only known by the parties and not its rivals. This creates an incentive to bluff about those abilities, to get more advantageous results out of the negotiation process. In other words, a country that is not satisfied with the negotiation will bluff about their war capabilities to so that their enemy perceives war as more costly and therefore have an incentive to avoid it (Fearon, 1995: 381). The strategy becomes dangerous when the other party has reasons to suspect that their rival is bluffing, which would lead them to ignore the threats, therefore making it hard for both sides to see compromise possibilities (Fearon, 1995).

Bargaining range theory does not stop there, however. There have been many historical instances where this bargaining range was found, both where war still happened. This can happen due to what Fearon calls commitment problems: if one or both sides are not able to

credibly guarantee that they will respect the outcomes of negotiations in the future, this eliminates the possibilities of finding the compromise (Fearon, 1995: 381). War can also still happen if the object of the potential conflict is seen as indivisible, that is, impossible to compromise on. While Fearon gives limited credit to this theory, other authors, such as Toft, explain some places, such as religious sites (the Mecca or Jerusalem's Temple Mount) but also territory that is deeply connected to national identity (such as Chechnya), are simply not on the negotiating table for some parties, and this makes war the only option of settlement (Fearon, 1995: 382; Toft, 2006: 46).

For there to be a bargaining range, both sides therefore need to perceive or suffer costs of war. This is necessary for both sides to seek avoiding war (Fearon, 1995: 388). There is more chance of there being a bargaining range when one of the parties shows more risk aversion (Fearon, 1995: 388). While the chances of there being a bargaining range is lower when parties have private information which leads them to believe they have more chances of winning a potential armed conflict and when parties are unable to be perceived as credible in their commitments to potential negotiations (Fearon, 1995: 380-383).

On the other hand, there is no bargaining when the potential conflict is about an indivisible issue, the leaders are optimistic about their chances to win and if their commitment to respecting the results of negotiation is perceived as uncredible (Fearon, 1995: 380-383).

To apply the bargaining range to the case of the October Crisis, I will first provide some context. The FLQ is a terrorist group that started in the beginning of the 1960s. During its first years, it conducted mainly symbolic violent attacks against symbols of Anglophone imperialism (Hewitt, 1994). The group's structure was small, decentralized and operated in secrecy (Burke, 2009). The violence reached its peak in October 1970 (hence the name *October Crisis*) when a cell of the group kidnapped James Cross, a British Diplomat and later, a different cell kidnapped Quebec's Minister of Labour, Pierre Laporte (Cooling, 2023; Hewitt, 1994). The Federal Government then invoked the War Measures Act (WMA), which lead to the suspension of civil rights, mass arrests and perquisitions (Burke, 2009). The day after the WMA was invoked, the FLQ murdered Pierre Laporte, which significantly decreased the support for the group in the population (Smith, 1993). Along with the murder, successful police operations delivered a hard blow to the group, which

declined and stopped committing violent actions (Hewitt, 1994; Ross, 1995). The existence of the FLQ was therefore very short lived, compared to other instances of ethnonationalist parties, it was also marked by the absence of potential competition : the FLQ never divided itself into factions, or had to deal with other competing factions, like the ETA had to do (Mahoney, 2018).

In this paper, I argue that the FLQ used terrorism to achieve different objectives in relation to the bargaining range on Quebec independence. In the first years, the FLQ did not see a bargaining range with the Federal Government due to information asymmetry: the federal government would not have seen the group as a sufficiently important actor to deal with them. Therefore, the FLQ's first use of terrorism did not aim at negotiating with the federal government but rather to achieve process goals, that is, goals to maintain its survival (financial, popularity, recruitment and morals) (Thomas, 2014). This would allow them to be more confident in their position in future negotiations, which is consistent with the literature on the bargaining range theory and terrorism: the violent act is committed to influence the bargaining range (Lake, 2002).

I argue that the October Crisis in 1970 was, as Fearon (1995) would say, a failure of negotiation. The FLQ's use of terrorism shifted from symbolic messages for process goals to kidnappings of political figures, which implies a shift in the target audience (Fortna, 2015). The FLQ had information about their own capabilities and wanted to have a better position on the bargaining table. They therefore used terrorism as a display of their *power to hurt* by showing off their ability to kidnap two important figures, they wanted to appear as able to hurt the federal government in ways it could not reciprocate (Thomas, 2014: 804). They used terrorism as a mobilization strategy: by provoking the government, this would lead to a disproportionately repressive response, leading the population feeling punished, decreasing trust in the government, and increasing the support for the FLQ (Polo & González, 2020). This would create an incentive to negotiate for the government, as further repressive action would also mean more political costs. This is consistent with what is observed in other instances of ethnonationalist terrorism, like in the Basque ETA (Mahoney, 2018).

Hypotheses

The theoretical model allows to derive the following hypotheses:

H1: Before October 1970, the FLQ aims at mostly symbolic and economic targets to achieve process goals.

H2a: In October 1970, the FLQ resorts to terrorism towards political target to show their power to hurt.

H2b: In October 1970, the FLQ resorts to terrorism to more coercive attacks to provoke a disproportionate state response and weaken the support for the state.

The first hypothesis is coherent with the theory of process goals, as argued by Abrahms (2012). At that point, the FLQ used terrorism as a very cost-efficient way to ensure its survival by getting attention. The second hypothesis and third hypotheses are coherent with strategies commonly documented in terrorist groups in relation with the bargaining range, which would explain the shift in the stakes of their attacks.

Methods

The unit of analysis in this case will be terrorist attacks by the Front de Liberation du Quebec during its active years, that is, between 1963 and 1970 (Hewitt, 1994; Burke, 2009). The case was selected intentionally. It is a hard single-case analysis. Indeed, the bargaining theory would have large explaining power if it is able to explain the short lived, very inefficient use of terrorism by the FLQ.

The methods will be mixed. The quantitative data comes from the open-source dataset Global Terrorism Database, a database by the National Consortium for the Study of Terrorism and Responses to Terrorism. The database includes data on terrorist events across the global since 1970, with variables on the date, place, targets, attack method, perpetrators and motivations of the attacks. The data comes from the press, archives and reports. This dataset is very useful in our case, since the hypotheses involve transformations over time, as well as the nature of the targets. The qualitative data will include official documents, public declarations by both the FLQ itself and the authorities, Press articles and reports following terrorist attacks. This will allow to qualitatively analyze the declared intent of the FLQ behind these attacks.

The first hypothesis will be tested both quantitatively and qualitatively. The dependent variables that will be observed are the methods, the type of target of the terrorist attack and the place of the attack by the FLQ. I did not include the motivation variable, since the database in opensource and therefore more prone to media bias, as well as incorrect coding. The independent variable will be time. For the first hypothesis, it is expected that prior to 1970, the attacks target mostly target symbolic objects related to anglophone culture and imperialism. For the places and target variables, I expect more attacks in anglophone majority neighborhoods, important anglophone institutions (like universities and banks). For methods, it is to be expected that the FLQ used less dangerous methods leading to less casualties, since their objective was to attract attention to shift the bargaining range and not to provoke the government right away. As for the qualitative variables in the first hypothesis, I expect, through process tracing, to find speeches and documents promoting the FLQ, encouraging recruitment or financing, as well as promoting the ideology. This would be coherent with the presumed intention of achieving process goals.

For the second and third hypotheses, the quantitative method will use the same variables: time as independent, and methods, place and targets as independent variables. In this case, if the hypothesis is true, the attacks post-1970 will be more related to the government, as the FLQ is presumed to be sending their message directly to the government. This entails attacks towards government officials, buildings, institutions, public service, etc. The data will also show that the methods used are more dangerous, as the objective is not to recruit, but to display power to hurt, so the attacks will be less symbolic and more coercive. As for the qualitative process tracing, the documents, speeches, and other data will show a shift towards more messages aiming directly at the government for the second hypothesis. The qualitative process tracing of the third hypothesis should show speeches and documents that point out the government's repressive and disproportionate reaction. This would be coherent with the provoking technique included in this model. If the FLQ truly sought to rally potential supporters through baiting the government into a disproportionate response, its message should also change to illustrate that.

To summarize, the methods will include descriptive mixed methods on the attacks by the FLQ and the written or spoken statements of the group after these attacks. If the hypotheses

are true, the attacks prior to 1970s should be less dangerous, and more aimed at symbolic targets, and the qualitative documents should display the need for process goals, namely financial support, recruitment, etc. The attacks post-1970 should be increasingly dangerous, aim primarily at government institutions and officials, and their justification should display a direct interaction with the government as well as indications of a provocation technique, such as emphasis on the disproportion of the government's repression response. Using mixed methods will allow to have a better description of the mechanisms and dynamics at play before and during the October crisis.

Conclusion

This paper conceives terrorism as a rational tool used by the FLQ to ameliorate their standing at the bargaining range. The model implies that what led to the October crisis is a shift in the strategy behind the usage of terrorism by the FLQ, from terrorism with the intent of achieving process goals to terrorism with the intent of influencing the bargaining range to better negotiate about Quebec independence, by showing power to hurt, bluffing and provoking disproportionate reaction to increase the costs of war for the government and leading to negotiations. Our methods include quantitative and qualitative analysis of FLQ attacks, from the Global Terrorism Database and documents related to the attacks for process tracing. This study presents significant limitations. First, it is built around a single hard case, which implies that generalization should be cautiously done. Second, the methods to not include quantitative causal: what is tested here is the coherence of the model, mainly through process tracing. The results of this study therefore suggest the model is coherent, but do not prove its empirical reliability. Third, the bargaining range theory was mainly conceived for conflicts between states, its application in clandestine war is still an adaptation, applying the theory must be done with caution.

The implication of this study is that terrorism's efficiency should not be measured through the success of their end goals, as terrorism is used to influence the bargaining range to then negotiate the end goals. The study also suggests that dismissing failure to reach concessions is empirically incorrect, as the failure at negotiating concessions can lead to a better understanding of the use of terrorism in the first place. Methodologically, the study

suggests that mixed methods can be used to measure quantitative tendencies and tie them to the qualitative mechanisms.

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